

25STCV37367 25STCV37367

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: PLAINTIFF BONESHIA PERRI'S MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED OR, IN THE ALTERNATIVE, TO COMPEL INITIAL RESPONSES OF DEFENDANT AMERICAN GOLF CORPORATION TO REQUESTS FOR ADMISSIONS, SET ONE; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$4,320.00 AGAINST DEFENDANT AND ITS ATTORNEY OF RECORD, JAMES MOSS, JOINTLY AND SEVERALLY [TENTATIVE] ORDER RE: PLAINTIFF BONESHIA PERRI'S NOTICE OF MOTION AND MOTION TO COMPEL INITIAL RESPONSES OF DEFENDANT AMERICAN GOLF CORPORATION TO SPECIAL INTERROGATORIES, SET ONE; FORM INTERROGATORIES (GENERAL), SET ONE; AND FORM INTERROGATORIES (EMPLOYMENT), SET ONE; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$4,320.00 AGAINST DEFENDANT AND ITS ATTORNEY OF RECORD, JAMES R. MOSS, JOINTLY AND SEVERALLY

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Case Number: 25STCV37367 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

BONESHIA PERRI,

Plaintiff,

vs.

AMERICAN GOLF CORPORATION, a

California corporation; and DOES 1 through 100, inclusive,

Defendants.

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[TENTATIVE] ORDER RE: PLAINTIFF

[TENTATIVE] ORDER RE:

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 16

Moving Party: Plaintiff, Boneshia Perri

Opposing Party: Defendant, American Golf Corporation

Notice: OK

Background Facts

Now before the Court are two discovery motions by Plaintiff Boneshia Perri: (1) a motion to deem as admitted the truth of matters specified in Requests for Admission, Set One, served by Plaintiff on Defendant American Golf Corporation ("AGC"), on February 4, 2026; and (2) a motion to compel initial responses to three sets of Set One interrogatories (special, general, and employment) served on AGC by Plaintiff on February 4, 2026. Both motions request an award of monetary sanctions in the amount of \$4,320.00.

Defendant AGC has opposed both motions on the grounds that it has since served Code-compliant responses to the subject discovery and that sanctions are not warranted based on the litigation history related to the discovery at issue.

Plaintiff's replies argue that the served responses are not Code-compliant and that monetary sanctions are properly supported by the record, showing a months-long delay in the service of even the defective responses.

Plaintiff's motions are now before the Court.

Motion to Deem Truth of Matters Specified in Requests for Admission Admitted; Request for Monetary Sanctions

a. Motion
to Deem as Admitted

After review, the Court determines that Plaintiff's motion related to Requests for Admission, Set One, is MOOT. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 ["Whether a particular response does resolve satisfactorily the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case"].)

Specifically, on September 3, 2026, AGC served verified responses to Requests for Admission, Set One. (Opposition, Moss. Jr. Decl., ¶ 15, Ex. N.) A review of those responses shows that they are Code-compliant insofar as they provide "Admit," "Deny," and admit and deny in part responses.

A party's responses are "unquestionably code compliant" when they consist of one-word "Admit" or "Deny" responses. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 780, 782.) The fact that, such as here, a party may add an explanation or qualification does not make an admission or denial equivocal and thus insufficient. (See *id.* at pp. 780-781 [examples].)

Request for Monetary
Sanctions

The Court next GRANTS Plaintiff's request for monetary sanctions, in part.

Even though AGC argues that it acted diligently and did not engage in discovery abuses, the Court is not satisfied with AGC's explanation as to why a delay from February 4, 2026, to September 3, 2026, in serving responses to discovery does not amount to failure to respond to an authorized method of discovery, as set forth in Code of Civil Procedure section 2023.010, subdivision (d).

However, the \$4,320.00 sought in sanctions is excessive and only supported in a declaration from counsel, which

does not sufficiently support the requested \$800.00 per hour fee rate. (Motion, Tojarieh Decl., ¶¶ 14-15.) The Court instead limits relief to a reasonable fee rate of \$450.00 per hour and 3 hours reasonably expended on these proceedings, yielding relief in the amount of \$1,350.00. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 40 [When a voluminous fee application is made the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure], 41 [A judge may reasonably reduce an attorney's requested rate if the judge finds that the invoiced work could have been done by a lower billing attorney].)

Last, the Court notes that the sanctions are granted jointly and severally as against AGC and its counsel of record, James Moss, Jr.

c. Conclusion

Plaintiff's motion to deem as admitted and request for monetary sanctions is (1) MOOT as to deeming admitted the truth of matters specified in Requests for Admission, Set One, and (2) GRANTED, in part, as to monetary sanctions, in the amount of \$1,350.00, jointly and severally as against AGC and its counsel of record, James Moss, Jr.

Defendant American Golf Corporation

SHALL remit payment of these monies to Plaintiff's counsel within 30 days of this Order.

Motion to Compel

Initial Responses to Interrogatories; Request for Monetary Sanctions

Motion to Compel

Initial Responses

After review, the Court determines that Plaintiff's motion related to Special Interrogatories, Set One, Form Interrogatories—General, Set One, and Form Interrogatories—Employment, is MOOT. (Sinaiko, supra, 148 Cal.App.4th at p. 409 [“Whether a particular response does resolve satisfactorily the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case”].)

Specifically, on September 3, 2026, AGC served verified responses to Special Interrogatories, Set One, Form Interrogatories—General, Set One, and Form Interrogatories—Employment. (Opposition, Moss, Jr. Decl., ¶ 15, Ex. K, L, M.) A review of those responses shows that they are sufficiently Code-compliant for initial response purposes and that the proper procedural vehicle to challenge these responses is a motion to compel further.

a. Request
for Monetary Sanctions

The Court next GRANTS Plaintiff's request for monetary sanctions, in part.

Even though AGC argues that it acted diligently and did not engage in discovery abuses, the Court is not satisfied with AGC's explanation as to why a delay from February 4, 2026, to September 3, 2026, in serving responses to discovery does not amount to failure to respond to an authorized method of discovery, as set forth in Code of Civil Procedure section 2023.010, subdivision (d).

However, the \$4,320.00 sought in sanctions is excessive and only supported in a declaration from counsel, which does not sufficiently support the requested \$800.00 per hour fee rate. (Motion, Tojarieh Decl., ¶¶ 14-15.) The Court instead limits relief to a reasonable fee rate of \$450.00 per hour and 3 hours reasonably expended on these proceedings, yielding relief in the amount of \$1,350.00. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 40 [When a voluminous fee application is made the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure], 41 [A judge may reasonably reduce an attorney's requested rate if the judge finds that the invoiced work could have been done by a lower billing attorney].)

Last, the Court notes that the sanctions are granted jointly and severally as against AGC and its counsel of record, James Moss, Jr.

b. Conclusion

Plaintiff's motion to compel

initial responses to interrogatories and request for monetary sanctions is (1) MOOT as to compelling initial responses to Special Interrogatories, Set One, Form Interrogatories—General, Set One, and Form Interrogatories—Employment, and (2) GRANTED, in part, as to monetary sanctions, in the amount of \$1,350.00, jointly and severally as against AGC and its counsel of record, James Moss, Jr.

Defendant American Golf Corporation

SHALL remit payment of these monies to Plaintiff's counsel within 30 days of this Order.

Plaintiff Boneshia Perri is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court